

NON-DISCLOSURE AGREEMENT

Between **FIL INTERNATIONAL RECRUITMENT AGENCY (FIRA)** and **XLR8 THESIS TEAM, UNIVERSITY OF MAKATI**

In connection with the undergraduate thesis project:

“DEVELOPMENT OF FIL INTERNATIONAL RECRUITMENT AGENCY: A WEB-BASED RECRUITMENT PLATFORM USING TF-IDF FOR CANDIDATE MATCHING AND CRITICAL PATH METHOD FOR DEPLOYMENT OPTIMIZATION”

Academic Year 2026–2027 – First Semester to Second Semester

This Non-Disclosure Agreement (“Agreement”) is made and entered into by and between:

FIL INTERNATIONAL RECRUITMENT AGENCY (“FIRA”), with office address at _____, represented herein by its Authorized Representative, _____ (Position: Owner);

And

XLR8, an undergraduate thesis development team from the University of Makati, College of Computing and Information Sciences, Bachelor of Science in Computer Science major in Application Development, composed of the following members (collectively, “XLR8”):

- Reiner Nuevas (Team Leader)
- John Venedick Hermoso
- Micaella Nil Santiago
- Maricar Lauren Orense

FIRA and XLR8 may each be referred to individually as a “Party” and collectively as the “Parties.”

1. PURPOSE AND SCOPE

XLR8 is undertaking, as part of its academic requirements for the period First Semester to Second Semester, Academic Year 2026–2027, the design and development of a web-based recruitment platform for FIRA titled “Development of Fil International Recruitment Agency: A Web-Based Recruitment Platform Using TF-IDF for Candidate Matching and Critical Path Method for Deployment Optimization” (the “Project”), as more particularly described in Annex A.

In the course of the Project, FIRA may share, and XLR8 may otherwise gain access to, information regarding FIRA's recruitment operations, applicants, employer clients, and internal business processes that FIRA considers confidential. This Agreement sets out the terms under which such information will be protected, and the terms under which the resulting system, source code, and academic outputs will be owned, licensed, and disclosed.

2. DEFINITION OF CONFIDENTIAL INFORMATION

“Confidential Information” means any non-public information disclosed by FIRA to XLR8, or otherwise accessed by XLR8 in connection with the Project, in any form (written, oral, electronic, or observed), including but not limited to:

- Applicant information (names, contact details, employment history, and other personal data submitted to FIRA)
- Employer and client company information
- Recruitment processes, workflows, and internal procedures
- Contracts and agreements with employers, clients, or partners
- Deployment and placement records
- Internal documents, memoranda, and business communications
- Source code, system architecture, and database structure developed for or provided to the Project
- API keys, credentials, and access tokens
- Financial information and business strategies
- Training materials and internal guidelines
- Future plans, proposals, and unpublished business initiatives

Confidential Information includes information disclosed before and during the term of this Agreement, whether or not marked “confidential.”

3. PERSONAL DATA AND THE DATA PRIVACY ACT OF 2012

XLR8 acknowledges that it may be given access to real applicant personal data, including but not limited to names, passport details, addresses, contact numbers, email addresses, employment history, and other sensitive personal information, for legitimate purposes of the Project only.

XLR8 shall process such personal data strictly in accordance with the Data Privacy Act of 2012 (Republic Act No. 10173) and its Implementing Rules and Regulations. XLR8 shall use real applicant data solely for system testing and development where necessary, shall keep such data confidential and secure, and shall not disclose, publish, or use such data outside the scope of the Project. Where feasible, XLR8 shall use synthetic or anonymized data for testing and demonstration purposes.

4. OBLIGATIONS OF XLR8

XLR8 agrees to:

- Hold all Confidential Information in strict confidence and not disclose it to any third party without FIRA's prior written consent, except as expressly permitted under Section 6 (Permitted Academic Disclosure);
- Use Confidential Information solely for the purpose of designing, developing, testing, and completing the Project;
- Take reasonable technical and organizational measures to protect Confidential Information and personal data from unauthorized access, loss, or disclosure;
- Ensure that all members of XLR8 are bound by, and comply with, the terms of this Agreement;

- Promptly notify FIRA in the event of any actual or suspected unauthorized disclosure or breach involving Confidential Information.

5. OBLIGATIONS OF FIRA

FIRA agrees to:

- Provide XLR8 with reasonable access to information and materials necessary for the completion of the Project;
- Recognize and respect XLR8's ownership of the source code and academic work product as set out in Section 7 (Intellectual Property Ownership);
- Support and cooperate with XLR8's academic requirements, including permitted disclosures for thesis defense, research congress, and publication as set out in Section 6.

6. PERMITTED ACADEMIC DISCLOSURE

Notwithstanding Section 4, XLR8 may disclose the following in connection with its proposal defense, final defense, research congress, journal publication, accreditation requirements, thesis manuscript, portfolio, résumé/CV, and professional profiles (including LinkedIn):

- System screenshots and user interface (UI) designs
- Workflow diagrams and system architecture
- Entity-Relationship Diagrams (ERD)
- Methodology, including the TF-IDF candidate-matching approach and Critical Path Method (CPM) deployment optimization
- Algorithms, performance results, and evaluation data
- Technical documentation prepared for academic requirements

provided that: (a) applicant personal data is anonymized or removed; (b) confidential business information and trade secrets of FIRA are omitted or generalized; and (c) API keys, credentials, and access tokens; financial information; deployment and placement records; and internal company documents, memoranda, and business communications are not disclosed. XLR8 shall be allowed to include the completed Project in its academic manuscript, portfolio, and professional credentials following completion, subject to the same conditions.

7. INTELLECTUAL PROPERTY OWNERSHIP

The source code, software architecture, algorithms, documentation, and other intellectual property developed by XLR8 in connection with the Project shall remain the intellectual property of XLR8 and its members, as part of their undergraduate thesis requirement.

Upon completion of the Project, FIRA shall receive a perpetual, royalty-free, non-exclusive license to use the completed system internally for its recruitment operations.

FIRA may request future enhancements or modifications from XLR8, or engage another developer to continue development, provided that (a) the original authorship of XLR8 is acknowledged, and (b) any transfer of source code, further licensing, or ownership beyond the internal-use license granted herein shall be the subject of a separate written agreement between the Parties.

FIRA shall not sell, sublicense, or commercially distribute the system to third parties without a separate written agreement with XLR8 addressing such use.

8. TERM AND CONFIDENTIALITY PERIOD

This Agreement shall take effect upon signing by both Parties and shall remain in effect for the duration of the Project, from First Semester to Second Semester, Academic Year 2026–2027. The obligations of confidentiality under this Agreement with respect to Confidential Information disclosed during the Project shall survive the completion or termination of the Project and shall continue indefinitely.

9. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

Confidential Information does not include information that: (a) is or becomes publicly available through no fault of XLR8; (b) was already known to XLR8 prior to disclosure by FIRA, as shown by written records; (c) is independently developed by XLR8 without use of or reference to FIRA's Confidential Information; or (d) is required to be disclosed by law, regulation, or a valid order of a court or government authority, provided that XLR8 gives FIRA reasonable prior notice, where legally permitted, before making such disclosure.

10. RETURN, RETENTION, AND DESTRUCTION OF INFORMATION

Upon completion of the Project, XLR8 shall not be required to return or delete all Confidential Information, but shall keep only such archived copies as are reasonably necessary for academic records (e.g., thesis manuscript, documentation submitted to the University), and shall not retain or use FIRA's operational data, credentials, or business documents beyond what is necessary for such academic records.

11. BREACH AND REMEDIES

Any breach of this Agreement may result in damages, injunctive relief, and other legal remedies available under Philippine law, and may result in the termination of the collaboration between the Parties. Nothing in this Agreement limits either Party's right to pursue any other remedy available at law or in equity.

12. NO EMPLOYMENT OR PARTNERSHIP RELATIONSHIP

Nothing in this Agreement shall be construed as creating an employment, partnership, joint venture, or agency relationship between FIRA and XLR8 or any of its members. XLR8's participation in the Project is undertaken solely in fulfillment of its academic thesis requirements under the University of Makati.

13. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the Republic of the Philippines.

14. MISCELLANEOUS PROVISIONS

14.1. Entire Agreement.

This Agreement constitutes the entire understanding between the Parties concerning its subject matter and supersedes all prior discussions or agreements, whether written or oral, relating thereto.

14.2. Amendment.

This Agreement may only be amended or modified through a written instrument signed by authorized representatives of both Parties.

14.3. Severability.

If any provision of this Agreement is found invalid or unenforceable, the remaining provisions shall continue in full force and effect.

14.4. Force Majeure.

Neither Party shall be liable for delay or failure to perform any obligation under this Agreement resulting from causes beyond its reasonable control.

14.5. Counterparts.

This Agreement may be signed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

SIGNATURE PAGE

IN WITNESS WHEREOF, the Parties have signed this Agreement on the dates indicated below.

FOR FIL INTERNATIONAL RECRUITMENT AGENCY (FIRA):

Authorized Representative

Position: Owner

Date: _____

FOR XLR8:

Reiner Nuevas – Team Leader

John Venedick Hermoso – Member

Micaella Nil Santiago – Member

Maricar Lauren Orense – Member

Date: _____

WITNESS:

Mr. Alexander Pahayahay – Thesis Adviser, University of Makati

Date: _____

ANNEX A – DESCRIPTION OF THE PROJECT

Project Title: Development of Fil International Recruitment Agency: A Web-Based Recruitment Platform Using TF-IDF for Candidate Matching and Critical Path Method for Deployment Optimization

Proponents: XLR8 – Reiner Nuevas (Team Leader), John Venedick Hermoso, Micaella Nil Santiago, Maricar Lauren Orense

Institution: University of Makati, College of Computing and Information Sciences, Bachelor of Science in Computer Science major in Application Development

Duration: First Semester to Second Semester, Academic Year 2026–2027

Description: The Project is a web-based recruitment platform developed for Fil International Recruitment Agency (FIRA), an international recruitment agency based in the Philippines. It integrates a public-facing website (Home, About, FAQ, News, Contact, and Job Search pages), an Applicant Tracking System (ATS), applicant and employer modules, and an agency staff dashboard for recruitment administration. The system supports applicant registration, profile completion, resume upload, agency form submission, employer job posting, and ATS-based status monitoring.

The Project's intelligent components include a candidate-job matching module based on TF-IDF (Term Frequency–Inverse Document Frequency) text similarity, used as decision support for shortlisting and endorsement, and the application of the Critical Path Method (CPM) for deployment scheduling and optimization. Final selection decisions remain under the authority of FIRA's agency staff and employer clients.